

4. SULLIVAN & ASSOCIATES, INC. v. CITY OF SOUTH LAKE TAHOE, ET AL., 25CV3051**Motion to Compel Arbitration**

On January 14, 2026, pursuant to Code of Civil Procedure section 1281.2, defendant DIV 15 Tech, Inc. (“defendant”) filed the instant motion to compel arbitration and stay the action.

On March 16, 2026, plaintiff Kevin M. Sullivan & Associates, Inc. (“plaintiff”) filed a timely opposition. On March 20, 2026, defendant filed a timely reply.

1. Notice Issues

It is unclear from defendant’s moving papers whether defendant moves to compel all parties to arbitration, or just the plaintiff. Based on the notice of motion, which is directed “to each party and their counsel of record,” as well as defendant’s reply brief, which presents new argument of why certain other defendants should be compelled to arbitrate, it appears that defendant seeks to compel all parties to arbitration.

A motion to compel must be accompanied by a notice of hearing. (Code Civ. Proc., § 1290.2) Where, as here, “the arbitration agreement does not provide the manner in which service shall be made and the person on whom service is to be made ... has previously been served in accordance with subdivision (b) of this section, service shall be made in the manner provided in Chapter 5 (commencing with Section 1010) of Title 14 of Part 2 of this code.” (Code Civ. Proc., § 1290.4, subd. (c).)

To date, there is no proof of service of the instant motion upon any of the other named defendants: (1) Roebbelen Contracting, Inc.; (2) City of South Lake Tahoe; and (3) Western Surety Company. Proofs of service of summons filed by plaintiff on December 3, 5, and 8, 2025, respectively, show that each of these defendants was served with the Summons and Complaint.

TENTATIVE RULING # 4: APPEARANCES ARE REQUIRED AT 1:30 P.M., FRIDAY, MARCH 27, 2026, IN DEPARTMENT FOUR, AT WHICH TIME, THE COURT WILL ASK

DEFENDANT DIV 15 TECH, INC., FOR CLARIFICATION ON THE NOTICE ISSUES OUTLINED
HEREIN AND THE SCOPE OF ITS MOTION.